

## 26PR00054 Matter of Saulsbury-Gates Trust

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-05-18

Motion: Petition to Compel Accounting

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Tentative Ruling: Matter of Saulsbury-Gates Trust

Case Number

26PR00054

Case Type

Trust

Hearing Date / Time

Mon, 05/18/2026 - 08:30

Nature of Proceedings

Petition to Compel Accounting

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

On January 23, 2026, Casey Gates filed a Petition for Internal Affairs of a Trust, pursuant to Probate Code section 17200, requesting an accounting. On May 15, 2026, Trena I. Cauthen and Lucas Gates filed a written objection to Casey Gates' petition, which places this matter at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

Parties must come prepared to set this matter for trial.

The following procedural defects also must be addressed:

Defective Proof of Service of Petition (not on Form DE-120). On March 30, 2026, Petitioner Casey Gates filed a Proof of Service of the Notice of Hearing (form DE-120) showing service on three persons occurred on March 27, 2026. The hearing date listed on the Proof of Service is March 30, 2026, making that Proof of Service ineffective. That service issue was remedied by Proof of Service filed on May 15, 2026.

HOWEVER, the written objection shows no proper proof of service on the mandatory Judicial Council form DE-120.

Notice of the hearing on trust matters must be given on mandatory Judicial Council Form DE-120 as follows:

At least 30 days before the time set for the hearing on the petition, the petitioner shall cause notice of hearing to be delivered pursuant to Section 1215 to all of the following persons: (1) All trustees. (2) All beneficiaries, subject to Chapter 2 (commencing with Section 15800) of Part 3. (3) The Attorney General, if the petition relates to a charitable trust subject to the jurisdiction of the Attorney General.

(Prob. Code, § 17203.)

Any Respondents desirous to object to the Petition, must file a written objection before the hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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